

# FIRST AMENDMENT TO MASTER SERVICES AGREEMENT

**Amendment Number:** AMD-2024-001 **Effective Date:** July 1, 2024  
**Reference Agreement:** MSA-2024-001 dated January 1, 2024

## PARTIES

This First Amendment ("Amendment") is entered into by and between:

**SERVICE PROVIDER:** TechServices Global Inc. 123 Innovation Drive, Suite 500 San Francisco, CA 94105 ("Provider")

**CLIENT:** Acme Corporation 456 Business Park Boulevard New York, NY 10001 ("Client")

## RECITALS

WHEREAS, Provider and Client entered into that certain Master Services Agreement dated January 1, 2024 (the "MSA");

WHEREAS, the Parties wish to amend the MSA to expand the scope of services, adjust pricing, and modify certain service level requirements;

NOW, THEREFORE, in consideration of the mutual promises contained herein, the Parties agree as follows:

## 1. AMENDMENTS TO SCOPE OF SERVICES

### 1.1 Additional Services

Section 2 of the MSA is hereby amended to add the following services:

(a) **Cybersecurity Operations Center (SOC):** 24/7 security monitoring, threat detection, and incident response services.

(b) **DevOps Platform Management:** CI/CD pipeline management, container orchestration (Kubernetes), and infrastructure-as-code services.

(c) **Data Analytics Platform:** Management of data lake infrastructure, ETL processes, and business intelligence tools.

## 1.2 Expanded Geographic Coverage

Services shall now include Client's European operations, specifically:  
- London, United Kingdom - Frankfurt, Germany - Amsterdam, Netherlands

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## 2. AMENDMENTS TO FEES AND PAYMENT

### 2.1 Revised Monthly Fee

Section 4.1 of the MSA is hereby amended. Effective July 1, 2024, the base monthly fee shall be:

| Service Component        | Previous Fee     | New Fee          | Change            |
|--------------------------|------------------|------------------|-------------------|
| Base Infrastructure      | \$125,000        | \$125,000        | -                 |
| Cybersecurity SOC        | \$0              | \$45,000         | +\$45,000         |
| DevOps Platform          | \$0              | \$30,000         | +\$30,000         |
| Data Analytics           | \$0              | \$25,000         | +\$25,000         |
| European Operations      | \$0              | \$50,000         | +\$50,000         |
| <b>Total Monthly Fee</b> | <b>\$125,000</b> | <b>\$275,000</b> | <b>+\$150,000</b> |

### 2.2 Revised Contract Value

Section 4.2 of the MSA is hereby amended. The total estimated contract value is revised as follows:

| Period                 | Previous Value | New Value   |
|------------------------|----------------|-------------|
| Initial Term (3 years) | \$4,500,000    | \$8,250,000 |
| Annual Value           | \$1,500,000    | \$3,300,000 |

### 2.3 One-Time Implementation Fees

The following one-time fees shall apply for new services:

| Service                     | Implementation Fee | Due Date          |
|-----------------------------|--------------------|-------------------|
| SOC Setup                   | \$150,000          | August 1, 2024    |
| DevOps Platform Setup       | \$100,000          | September 1, 2024 |
| Data Analytics Setup        | \$75,000           | October 1, 2024   |
| Europe Onboarding           | \$125,000          | November 1, 2024  |
| <b>Total Implementation</b> | <b>\$450,000</b>   |                   |

### 3. AMENDMENTS TO SERVICE LEVEL AGREEMENTS

#### 3.1 New Security SLAs

The following SLAs are added to Exhibit A of the MSA:

| Security Metric                      | Target       | Minimum        | Measurement  |
|--------------------------------------|--------------|----------------|--------------|
| Threat Detection Time                | < 5 minutes  | < 15 minutes   | Real-time    |
| Security Incident Response           | < 15 minutes | < 30 minutes   | Per incident |
| False Positive Rate                  | < 5%         | < 10%          | Monthly      |
| Security Patch Deployment (Critical) | < 24 hours   | < 48 hours     | Per patch    |
| Security Patch Deployment (High)     | < 72 hours   | < 7 days       | Per patch    |
| Vulnerability Scan Completion        | 100% weekly  | 100% bi-weekly | Weekly       |

#### 3.2 DevOps Platform SLAs

| DevOps Metric               | Target | Minimum | Measurement |
|-----------------------------|--------|---------|-------------|
| CI/CD Pipeline Availability | 99.9%  | 99.5%   | Monthly     |
| Build Success Rate          | > 95%  | > 90%   | Weekly      |
|                             | > 98%  | > 95%   | Weekly      |

| DevOps Metric                   | Target       | Minimum      | Measurement    |
|---------------------------------|--------------|--------------|----------------|
| Deployment Success Rate         |              |              |                |
| Container Registry Availability | 99.95%       | 99.9%        | Monthly        |
| Mean Time to Deploy             | < 30 minutes | < 60 minutes | Per deployment |

### 3.3 Data Analytics Platform SLAs

| Analytics Metric              | Target       | Minimum      | Measurement |
|-------------------------------|--------------|--------------|-------------|
| Data Pipeline Availability    | 99.5%        | 99.0%        | Monthly     |
| Data Freshness (Real-time)    | < 5 minutes  | < 15 minutes | Continuous  |
| Data Freshness (Batch)        | < 4 hours    | < 8 hours    | Daily       |
| Query Response Time (Simple)  | < 3 seconds  | < 10 seconds | Per query   |
| Query Response Time (Complex) | < 30 seconds | < 60 seconds | Per query   |
| ETL Job Success Rate          | > 99%        | > 97%        | Daily       |

### 3.4 Revised Existing SLAs

Section 5.1 of the MSA (System Availability) is hereby amended:

| Metric                   | Previous Target | New Target | Previous Minimum | New Minimum |
|--------------------------|-----------------|------------|------------------|-------------|
| Core System Availability | 99.9%           | 99.95%     | 99.5%            | 99.7%       |
| Network Availability     | 99.95%          | 99.99%     | 99.8%            | 99.9%       |
| Application Availability | 99.7%           | 99.9%      | 99.0%            | 99.5%       |

## 4. AMENDMENTS TO SERVICE CREDITS

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### 4.1 Revised Service Credit Schedule

Section 6.1 of the MSA is hereby amended:

| SLA Achievement | Previous Credit | New Credit         |
|-----------------|-----------------|--------------------|
| 99.5% - 99.69%  | N/A             | 3% of monthly fee  |
| 99.0% - 99.49%  | 5%              | 7% of monthly fee  |
| 98.0% - 98.99%  | 10%             | 15% of monthly fee |
| 97.0% - 97.99%  | 15%             | 20% of monthly fee |
| Below 97.0%     | 25%             | 30% of monthly fee |

### 4.2 Revised Maximum Credits

Section 6.2 of the MSA is hereby amended. Total Service Credits in any month shall not exceed **40%** of the monthly fee (increased from 30%).

### 4.3 Security Breach Penalties

In addition to Service Credits, the following penalties shall apply for security-related failures:

| Security Event                                     | Penalty                                 |
|----------------------------------------------------|-----------------------------------------|
| Undetected breach (> 24 hours)                     | \$100,000 per incident                  |
| Data exfiltration                                  | \$500,000 per incident + actual damages |
| Ransomware infection due to negligence             | \$250,000 per incident                  |
| Failure to patch critical vulnerability (> 7 days) | \$50,000 per occurrence                 |

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## 5. NEW OBLIGATIONS

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### 5.1 Provider Security Obligations

Provider shall:

- (a) Maintain SOC 2 Type II certification for all new services;
- (b) Conduct penetration testing quarterly (previously annually);

- (c) Provide security awareness training to Client staff upon request;
- (d) Maintain a dedicated Security Incident Response Team (SIRT);
- (e) Provide monthly security posture reports by the **10th business day** of each month;
- (f) Implement zero-trust security architecture within **6 months** of this Amendment's effective date.

5.2 Provider DevOps Obligations

Provider shall:

- (a) Maintain container image vulnerability scanning;
- (b) Implement GitOps practices for all infrastructure changes;
- (c) Provide deployment rollback capability within **5 minutes**;
- (d) Maintain separate development, staging, and production environments.

5.3 Client Obligations

Client shall:

- (a) Designate a Security Liaison within **10 business days** of this Amendment's effective date;
- (b) Provide timely access to European systems and facilities;
- (c) Ensure compliance with GDPR for European operations;
- (d) Participate in quarterly security reviews.

6. KEY MILESTONES FOR NEW SERVICES

| Milestone | Description              | Target Date        | Credit at Risk |
|-----------|--------------------------|--------------------|----------------|
| SOC-1.0   | SOC Infrastructure Setup | July 31, 2024      | \$50,000       |
| SOC-2.0   | SOC Fully Operational    | August 31, 2024    | \$75,000       |
| DEV-1.0   | DevOps Platform Setup    | August 31, 2024    | \$40,000       |
| DEV-2.0   | DevOps Fully Operational | September 30, 2024 | \$60,000       |
| DATA-1.0  | Analytics Platform Setup | September 30, 2024 | \$30,000       |

| Milestone | Description                 | Target Date       | Credit at Risk |
|-----------|-----------------------------|-------------------|----------------|
| DATA-2.0  | Analytics Fully Operational | October 31, 2024  | \$50,000       |
| EU-1.0    | European Sites Onboarded    | October 31, 2024  | \$75,000       |
| EU-2.0    | European Operations Stable  | November 30, 2024 | \$100,000      |

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## 7. INSURANCE AMENDMENTS

Section 12 of the MSA is hereby amended to increase coverage:

| Coverage Type                | Previous Amount | New Amount   |
|------------------------------|-----------------|--------------|
| General Liability            | \$2,000,000     | \$5,000,000  |
| Professional Liability (E&O) | \$5,000,000     | \$10,000,000 |
| Cyber Liability              | \$10,000,000    | \$25,000,000 |

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## 8. TERM

### 8.1 Amendment Term

This Amendment shall become effective on July 1, 2024 and shall continue for the remaining term of the MSA, including any renewals.

### 8.2 MSA Term Extension

The Initial Term of the MSA is hereby extended by **one (1) year** to December 31, 2027, to allow for full realization of expanded services.

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## 9. TRANSITION PERIOD

### 9.1 Transition Timeline

| Phase   | Duration        | Activities                                 |
|---------|-----------------|--------------------------------------------|
| Phase 1 | July 1-31, 2024 | SOC infrastructure setup, staff onboarding |

| Phase   | Duration       | Activities                           |
|---------|----------------|--------------------------------------|
| Phase 2 | Aug 1-31, 2024 | SOC go-live, DevOps setup            |
| Phase 3 | Sep 1-30, 2024 | DevOps go-live, Analytics setup      |
| Phase 4 | Oct 1-31, 2024 | Analytics go-live, Europe onboarding |
| Phase 5 | Nov 1-30, 2024 | Europe go-live, stabilization        |

### 9.2 Reduced SLAs During Transition

During the transition period, SLA targets for new services shall be reduced by **10%** for the first 60 days of operation.

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## 10. GENERAL PROVISIONS

### 10.1 Effect of Amendment

Except as expressly modified by this Amendment, the MSA remains in full force and effect.

### 10.2 Conflict

In the event of any conflict between this Amendment and the MSA, this Amendment shall prevail.

### 10.3 Entire Amendment

This Amendment constitutes the entire agreement between the Parties with respect to the matters addressed herein.

### 10.4 Counterparts

This Amendment may be executed in counterparts, each of which shall be deemed an original.

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## KEY DATES SUMMARY

| Date          | Event                 |
|---------------|-----------------------|
| July 1, 2024  | Amendment Effective   |
| July 31, 2024 | SOC-1.0 Milestone Due |



| Date               | Event                             |
|--------------------|-----------------------------------|
| August 1, 2024     | SOC Implementation Fee Due        |
| August 31, 2024    | SOC-2.0 & DEV-1.0 Milestones Due  |
| September 1, 2024  | DevOps Implementation Fee Due     |
| September 30, 2024 | DEV-2.0 & DATA-1.0 Milestones Due |
| October 1, 2024    | Analytics Implementation Fee Due  |
| October 31, 2024   | DATA-2.0 & EU-1.0 Milestones Due  |
| November 1, 2024   | Europe Implementation Fee Due     |
| November 30, 2024  | EU-2.0 Milestone Due              |
| December 31, 2024  | Zero-Trust Implementation Due     |
| December 31, 2027  | Extended MSA Expiration           |

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## SIGNATURES

### TechServices Global Inc.

Signature: \_\_\_\_\_ Name: John Smith Title: Chief Executive Officer  
Date: June 20, 2024

### Acme Corporation

Signature: \_\_\_\_\_ Name: Jane Doe Title: Chief Information Officer  
Date: June 22, 2024

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*End of First Amendment*